

1 MODEL ACT - Frontier AI Public Welfare Offenses
2 v3.4.1 - working text, 27 August 2026
3

4 [This is the tagged text of v3.4 with three settled corrections made, and with every unsettled
5 change placed as a bracketed note at the provision it would alter. It is a reading copy. It is
6 not tagged, not checksummed, and nothing in it has been reviewed by a lawyer.]
7

8 [WHAT IS APPLIED HERE]

- 9 - SEC. 8 - comma corrected to a period, restoring a lost sentence boundary. (Amendment 5; mechanical)
- 10 - SEC. 6(b)(1) and SEC. 7(b)(5) - wilfully/wilful corrected to the American spelling, 3 occurrences
- 11 - End of file - two stray characters removed.

12

13 [WHAT IS NOT APPLIED] Seventeen further amendments are drafted and appear as notes below, each
14 at its own provision, with what blocks it. Four more are drafted and would make the Act worse as
15 written -- their own internal review says so -- and they appear as notes marked BLOCKED. Nine of
16 the twenty-three have been validated by nobody.

17

18 [HOW TO READ A NOTE] Each begins [PROPOSED] or [BLOCKED] or [OPEN], gives the change, and states
19 what is missing before it could land: a citation, a document, a reading, counsel, or a decision.

20

21 =====

22

23 SEC. 0. FINDINGS AND PURPOSE (UNCODIFIED).

24 (a) The Legislature finds:

25 (1) Covered systems are deployed to, operated within, and made available to residents of this
26 State, and the deaths, injuries, intrusions and losses this Act addresses occur to persons and
27 property within this State.

28 (2) The protection of persons within this State from death and serious injury, and the punishment
29 of those whose failures of care cause it, is among the oldest and most traditional exercises of
30 this State's police power, and is the same power by which this State punishes homicide, reckless
31 endangerment, the endangerment of the public by the sale of adulterated or unsafe goods, and false
32 statements made to its own officers.

33 (3) The duties this Act imposes arise from the deployment, material expansion, release, or
34 operation of a covered system in or into this State, or from conduct in this State in relation to
35 such a system. This Act imposes no duty on any person by reason of research, training, or
36 development that neither occurs in this State nor concerns a covered system deployed or released
37 in or into this State.

38 (4) No provision of this Act requires any person to express, adopt, endorse, or refrain from
39 expressing any opinion, characterization, viewpoint, or contested position, or to alter the output
40 of any covered system. The statements this Act requires are statements of fact within the
41 knowledge of the person making them, made to a regulator.

42 (5) This Act draws no distinction between persons within and persons outside this State. It
43 confers no advantage on any in-state person and imposes no obligation on an out-of-state person
44 that it does not impose on an in-state person engaged in the same conduct with respect to the same
45 system.

46 (6) The obligations this Act imposes are, in substance, the obligations that responsible
47 developers, providers, and deployers of covered systems already represent that they discharge, and
48 the incremental burden of compliance is small in relation to the revenues of the persons on whom
49 it falls.

50 (7) This Act supplements and does not displace the generally applicable criminal and civil law of
51 this State, which applies to conduct concerning covered systems as it applies to all other
52 conduct.

53 (b) Purpose. The purpose of this Act is to place personal responsibility for the safety of covered
54 systems deployed, operated, or released in or into this State upon the natural persons who hold
55 practical authority over them, on the doctrine of *United States v. Park*, 421 U.S. 658 (1975), by
56 means that operate upon private conduct occurring in or directed into this State.

57

[PROPOSED] Decision 4 - SEC. 2(a) and SEC. 1(c): the Act does not reach the conduct it was written
Level 5. Limb (i) ruled to land; limb (ii) open - extraterritoriality

[OPEN] Amendment 19 -- Never drafted - number and title only

SEC. 1. CLASSIFICATION AND DEFINITIONS. (a) Offenses under this Act are public welfare offenses within the meaning of *Morissette v. United States*, 342 U.S. 246 (1952), except where a greater mental state is expressly required.

(b) In this Act: (1) "Covered frontier model": a foundation model whose training and lineage compute (initial training plus fine-tuning, reinforcement learning, and material modification along the model's lineage, excluding unrelated experimental runs, as further specified by rule, including the treatment of fine-tuning, distillation, merging, and aggregation) exceeds 10^{26} integer or floating-point operations; or any model designated by the Agency under SEC. 3 as frontier-equivalent by capability. The compute figure is a bright-line trigger; capability designation under SEC. 3 reaches models below it. Designation is prospective only. Until a rule under specifies the treatment of fine-tuning, distillation, merging, and aggregation: (A) a distinct model derived from a covered frontier model is itself a covered frontier model only if the compute applied in its derivation, together with the lineage compute otherwise attributable to it under this paragraph, exceeds the figure in this paragraph, or the Agency prospectively designates it; (B) derivation compute not exceeding $[10^{24}]$ integer or floating-point operations does not, standing alone, extend a lineage; and (C) records sufficient to compute lineage under SEC. 12 shall be created and retained for any derivation whose compute exceeds $[10^{22}]$ integer or floating-point operations, whether or not the resulting model is covered, the records duty of this subparagraph operating independently of coverage. (2) "Covered system": a deployed configuration of a covered frontier model, including tools, memory, retrieval, credentials, and permissions attached to it. (3) "Developer," "substantial modifier," "provider," "deployer": the entity that respectively trains, materially modifies, makes available, or operates a covered model or system, directly or through any affiliate. Deployment through an affiliate is deployment by the principal. Personal, noncommercial operation of a covered model for a person's own use is not deployment. (4) "Controlling person": as defined in SEC. 4. (5) "Critical safety incident": as defined in SEC. 9(a). (6) "Material expansion": a change that increases a covered system's capabilities, autonomy, external access, or permissions beyond its validated configuration, including the grant of a new class of tools, credentials, or permissions; the enablement of an autonomous external-access capability; or the removal or material weakening of a safeguard identified in the applicable validation. The Agency may elaborate this definition prospectively by rule and may not narrow it; the definition operates of its own force from the effective date, no rule being required. (7) "Unauthorized access": access to a system, data, or model which the person entitled to control them has not granted permission, whether or not technological measures prevented or would have prevented the access; a defect in, or absence of, technical access controls is not a grant of permission. (8) "Serious injury": an injury or illness that is life-threatening, results in permanent impairment of a body function or permanent damage to a body structure, or necessitates medical or surgical intervention to preclude such permanent impairment or damage; "permanent" means irreversible, excluding trivial impairment or damage, per 21 C.F.R. § 803.3(w). (9) "Release": making the weights of a covered frontier model available for download, transfer, or reproduction outside the releasing entity's control. A release is a deployment of a covered system for purposes of this Act; duties in connection with a release are limited to those capable of performance before the release. Nothing in this Act restricts any person's use, study, or modification of lawfully obtained weights, except as part of the deployment of a covered system. (10) "Autonomous external-access capability": the capability of a covered system, in its deployed configuration, to initiate interactions with systems, services, accounts, or persons outside the control of the deploying entity - including network requests, execution of code affecting external systems, transactions, and communications - without the approval of a natural person for each interaction. The Agency may specify classes of such capability by rule; the absence of a rule neither suspends nor narrows SEC. 5(b) once the controls that section presupposes have been prescribed under SEC. 3.

(c) Jurisdiction. This Act applies to conduct occurring in this State, to covered systems made available to residents of this State, and to conduct intended to produce and producing substantial

115 effects within this State. Conduct occurring outside this State is relevant under this Act only as
 116 evidence bearing on an element of an offense committed in or into this State. No person incurs a
 117 duty under this Act by reason of conduct that neither occurs in this State nor concerns a covered
 118 system deployed, released, or made available in or into this State. A person who does not deploy a
 119 covered system in or into this State, does not make it available to residents of this State, and
 120 does not release its weights, is not subject to this Act as to that system.

121

122 [PROPOSED] Amendment 1 - "Serious injury" source moves to 18 U.S.C. § 1365(h)(3)-(4)
 123 Level 4. Changes what the Act requires; needs counsel
 124 Would read:
 125 (8) "Serious bodily injury": bodily injury which involves (A) a substantial risk of death; (B) ex
 126 "Bodily injury" means (A) a cut, abrasion, bruise, burn, or disfigurement; (B) physical pain; (C)
 127 Per 18 U.S.C.
 128 § 1365(h)(3)-(4).

129

130 [BLOCKED] Amendment 6 - SEC. 1(b)(1): the developer's own designation as a third route into scope
 131 Level 4. Four required amendments unmet
 132 Would read:
 133 exceeds 10^{26} integer or floating-point operations; or a foundation model that its developer has o
 whether by so describing the model itself, or by so describing any safety, preparedness, risk-management, e
 including a holding-out in a published framework or policy, in the name, charter, or mandate of an internal
 134 3 as frontier-equivalent by capability.

135

136 [PROPOSED] Amendment 13 - SEC. 1(b)(1)(B): say "sever," not "extend"
 137 Level 4. Open-source implications are policy
 138 Would read:
 139 (B) a derivation whose compute does not exceed $[10^{24}]$ integer or floating-point operations does r
 140

141 [BLOCKED] Amendment 16 - SEC. 1(b)(7): a deception limb, because *Van Buren* excludes what actually
 142 Level 2. Van Buren not held
 143 Would read:
 144 Access obtained by means of a false identity, a fabricated persona, a false statement of fact mat
 145

146 [BLOCKED] Amendment 7 - the covered frontier enterprise: scope follows the ecosystem, duty follows
 147 Level 3, held. Seven required amendments unmet
 148 Would read:
 149 (11) "Frontier compute supplier": an entity that owns, operates, designs, finances, reserves, or s
 150 3, and not less than capacity reasonably capable of performing 10^{26} integer or floating-point op
 151 The ordinary sale or provision of general-purpose goods or services, without more, does not make a
 152 (12) "Covered frontier enterprise": an entity that (A) is a developer, substantial modifier, prov
 153

154 SEC. 2. PUBLIC WELFARE DUTY. (a) Duty. No covered system may be deployed in or into this State, or
 155 materially expanded, unless each controlling person has exercised due care to ensure the system's
 156 compliance with the safety, authorization, monitoring, incident-reporting, and deployment
 157 standards applicable under SEC. 3. A duty under this Act arises upon, and by reason of, the
 158 deployment, material expansion, release, or continued operation of a covered system in or into
 159 this State, and not otherwise. Each duty under this Act attaches to the actor who controls the
 160 relevant risk: the developer as to model evaluation and weight security; the provider and deployer
 161 as to configuration, tools, permissions, and monitoring; the releasing provider as to pre-release
 162 evaluation - including evaluation of the model as it can be modified, such as by removal of
 163 safeguards or fine-tuning within a rule-specified compute budget - tamper-resistance assessment,
 164 and weight security up to the moment of release; each controlling person as to the exercise of the
 165 authority that person holds. The compute budget within which modification of a model is to be
 166 evaluated shall be specified by rule and shall not be less than the greater of [one] percent of
 167 the covered model's training and lineage compute, as computed under SEC. 1(b)(1), or $[10^{24}]$
 168 integer or floating-point operations; until a rule first takes effect, the budget is that minimum.
 169 (b) Reliance by non-modifying deployers. A deployer that operates a covered system within a

validated configuration, without material modification of the covered model and without attaching or granting tools, memory, retrieval, credentials, permissions, or external access beyond those identified in the validation on which it relies, discharges the duty of due care under subsection (a), as to the matters within the scope of that validation, by: (1) documented adoption, before deployment, of a validation under SEC. 3(b), or a provisional validation under SEC. 3(c)(2), prepared by the developer or provider of the covered system and identifying the model version and deployment configuration deployed; (2) preparation and retention under SEC. 12 of a manifest of every tool, memory, retrieval mechanism, credential, permission, and avenue of external access the deployer attaches or grants, demonstrating conformity to the validated configuration; (3) the monitoring within the deployer's control that the adopted validation or the applicable standards specify for the configuration; and (4) reporting under SEC. 9 of matters within the deployer's knowledge. Reliance under this subsection is unavailable to a deployer that knows, or consciously avoids knowing, of a material nonconformity in the adopted validation or in the deployed configuration, and lapses upon the deployer's material modification or material expansion of the covered system, from the time of that modification or expansion. Nothing in this subsection conditions any duty, or the discharge of any duty, upon the revenue, size, or resources of any person.

(c) Controlled research deployment. Making a covered system available solely to authenticated researchers, under documented terms of access, within containment that (1) denies the system any autonomous external-access capability, (2) denies the persistence of credentials, permissions, and external effects beyond each session, and (3) is monitored, is a controlled research deployment. A controlled research deployment satisfies SEC. 5(a), and discharges the duty of subsection (a) as to it, upon a documented conformity assessment limited to the containment, authentication, monitoring, and access-term controls of this subsection, retained and transmitted as SEC. 3(c)(2)(C) provides. The duties of this Act attach in full upon any deployment, expansion, or release beyond the terms of this subsection, from the time of that deployment, expansion, or release. Nothing in this subsection limits SEC. 9 or SEC. 12, and behavior within a controlled research deployment remains subject to the recording rule of SEC. 9(a).

[PROPOSED] Decision 2 - SEC. 2 / SEC. 9: does the duty reach an evaluation run with safeguards disal
Level 5. Whether a configuration decision is a covered act

SEC. 3. DESIGNATED AGENCY; STANDARDS; COMMENCEMENT. (a) The [designated state agency, board, or commission] ("the Agency") shall adopt standards for covered systems by rule, after notice and opportunity for technical submissions. The Agency may incorporate a specifically identified version of a standard developed by another body only upon its own independent review, with power to modify or reject, and no amendment to an incorporated standard takes effect in this State until the Agency adopts it by the same procedure. All incorporated material shall be publicly available without charge. Standards under this section shall be limited to safety, authorization, monitoring, incident-reporting, and deployment controls for covered systems; shall be technically feasible and evidence-based; and shall be proportionate to the risks presented.

(b) The Agency shall specify for each standard the mode of validation (internal attestation, independent audit, or accredited certification). Validation attaches to an identified model version and deployment configuration. A model validated without tools is not validated as to any configuration granting external access or significant permissions. No standard, rule, or mode of validation under this Act may condition any deployment, expansion, or release upon the prior affirmative approval of the Agency or of any officer of this State.

(c) Commencement.

(1) Immediate operation. This Act operates from its effective date. The offenses under SEC. 5(c), SEC. 5(d), and SEC. 5(e); the reporting duties of SEC. 9; the records duties of SEC. 12; and the provisions of SEC. 1, SEC. 4, SEC. 6, SEC. 7, SEC. 10, SEC. 11, SEC. 13, and the remainder of SEC. 12 arise and operate from the effective date, and do not depend upon the promulgation of any standard, the adoption of any rule, or any other act of the Agency. No duty arises under SEC. 2, and no offense lies under SEC. 5(a), before the provisional commencement of paragraph (2); no offense lies under SEC. 5(b) before commencement under paragraph (3). This paragraph governs time; SEC. 1(c) and SEC. 2 govern to whom, and by reason of what conduct, a duty attaches.

(2) Provisional commencement. Beginning [180] days after the effective date, and until superseded under paragraph (3), the duties of SEC. 2 and the offense of SEC. 5(a) operate on the basis of provisional validation, and the certification duty of SEC. 8 operates from the same day, the applicable standards for its purposes being the interim standards of paragraph (4). Provisional validation of a covered system consists of a documented conformity assessment, prepared or adopted by an entity that develops, releases, provides, or deploys the covered system, that: (A) identifies the model version and deployment configuration, including the tools, memory, retrieval, credentials, and permissions attached; (B) states, after reasonable inquiry and on the basis of the documented assessment, a reasonable documented conclusion that the covered system, and each entity's practices concerning it, materially conform to the interim standards - where the assessment identifies nonconformity with any interim standard, the conclusion may be stated only if the assessment identifies, for each such nonconformity, an equivalent compensating measure in effect (a measure shown, by documented analysis against the risk the departed-from standard addresses, to provide protection equivalent to conformity) and states the analysis; and (C) is retained and transmitted to the Agency on or before the deployment, material expansion, or release to which it relates. Provisional validation attaches to the identified model version and deployment configuration; a system provisionally validated without tools is not validated as to any configuration granting external access or significant permissions.

(D) Nonconformity reports. A document that discloses identified nonconformity without stating the conclusion subparagraph (B) requires, or whose compensating measures are not equivalent within the meaning of that subparagraph, is a nonconformity report and not a provisional validation. It shall be transmitted and retained as subparagraph (C) provides; it discharges no duty under SEC. 2 and satisfies neither this paragraph nor SEC. 5(a); and its transmission is a statement to the Agency for purposes of SEC. 5(d) and notice for purposes of SEC. 6(b)(1).

(3) Standards commencement. Upon the promulgation of standards under subsection (a) and the running of a compliance period of [90] days, validation in the mode specified under subsection (b) is the validation SEC. 5(a) requires for any deployment, material expansion, or release occurring thereafter, and provisional validation ceases to satisfy SEC. 5(a) except as to covered systems deployed before that day, for which the transition period of SEC. 12 runs from that day. The offense under SEC. 5(b) commences when the controls it presupposes have been prescribed under this section and the same compliance period has run. Conduct is judged by the standards applicable to it at its time; no conduct lawful when done becomes unlawful by a later commencement, and no provisional validation is invalidated retroactively. [The Agency shall propose initial standards under subsection (a) within [540] days of the effective date.]

(4) Interim standards. The interim standards are the frontier artificial intelligence framework duties enacted at Section 22757.12 of the California Business and Professions Code (ch. 138, Stats. 2025), Section 1421 of the New York General Business Law (ch. 96, L. 2026), and Section 10 of the Illinois Artificial Intelligence Safety Measures Act (P.A. 104-0538), each as in effect on [1 August 2026], which are adopted for the purposes of this Act as they so exist and not as they may afterward be amended, repealed, suspended, or invalidated in the enacting jurisdiction. For those purposes: (A) the duties apply to every covered frontier model and covered system, and to each entity that develops, releases, provides, or deploys one, without regard to any revenue threshold, exemption, effective date, phase-in date, or territorial term of the enacting jurisdiction; (B) a duty to publish, or to transmit any document to an officer, agency, or the public of an enacting jurisdiction, is performed under this Act by transmission to the Agency, and publication is permitted but not required by this Act; (C) provisions respecting assessment or audit by a third party do not apply, and conformity may be documented internally, independent assessment being at the entity's election; (D) provisions respecting incident reporting, penalties, enforcement, fees, assessments, and whistleblowers are not adopted, those subjects being governed from the effective date by SEC. 9, SEC. 10, and SEC. 11 of this Act; and (E) conformity documented for the purposes of any of the three enactments in an enacting jurisdiction is conformity with the corresponding interim standard under this Act, to the extent of the matters documented. The Agency shall make the adopted texts publicly available without charge.

(5) Element and due care. Absence of required validation is an element of the offense under SEC. 5(a); the validation required is the provisional validation of paragraph (2) or the validation of subsection (b), as applicable to the conduct at its time. Documented conformity with the standards applicable at the time - interim or promulgated - satisfies the duty of due care

284 under SEC. 2 as to the matters conformed, a nonconformity report satisfying nothing under this
285 paragraph. An entity's own frontier artificial intelligence
286 framework, written and followed as an interim standard requires, is an object of the conformity
287 this paragraph credits; standing alone it remains evidence neither of due care nor of its absence,
288 per SEC. 6(a).

289

290 [PROPOSED] Amendment 10 - SEC. 3(c)(3): interim controls, so SEC. 5(b) is not dormant until year for
291 Level 4. Writes four technical controls in as offense elements

292 Would read:

293 offense under SEC.

294 5(b) commences when the controls it presupposes have been prescribed under this section and the s

295 5(b) operates on the basis of the following interim controls, which the Agency may supersede but r

296 12; (iii) logging of every external interaction initiated by the covered system, retained under SI

297 12; and (iv) a means, exercisable by a natural person, of terminating the system's external access

298

299 [PROPOSED] Amendment 15 - SEC. 3(c)(2): a disclose-and-fix valve, because the text currently punish
300 Level 4. The 90-day shelter's renewal is unstated

301 Would read:

302 (E) Disclosed nonconformity; limited period.

303 Where a nonconformity report under subparagraph (D) is transmitted before the deployment, materia

304 5(a), and no notice arises under SEC.

305 6(b)(1), by reason of the disclosed nonconformity for [90] days from transmission, provided that

306 This subparagraph does not apply to a nonconformity the entity knew of and did not disclose, and

307 The Agency, or the Attorney General before the Agency is organized, may short.

308

309 [PROPOSED] Amendment 23 - SEC. 3(c)(4)(B): restore the publication the allied statutes require, on
310 Level 4. Changes what the Act requires

311 Would read:

312 (B) A duty to publish under an interim standard is performed under this Act by publication in the

313 A person publishing under this subparagraph may redact, and shall describe the character and just

314 12 and is retained, produced, and treated as SEC.

315 12 provides.

316

317 [PROPOSED] Amendment 26 - SEC. 3(c)(4): the disapplication list, repaired against a full read of al
318 Level 3. Research complete; needs a reading

319 Would read:

320 (C) provisions requiring assessment or audit by a third party do not apply, independent assessment

321

322 [PROPOSED] Amendment 20 - the chosen-stick clause: conformity outside the Act credits nothing

323 Level 4. Too harsh on good-faith compliers?

324

325 [BLOCKED] Decision 1 - SEC. 3(c)(4): does Connecticut become a fourth interim standard?

326 Level 2. Connecticut's enacted act not held

327

328 SEC. 4. CONTROLLING PERSONS. (a) A controlling person is any natural person who, regardless of
329 title, possesses or exercises final material independent decision authority over a covered system thr

330 (1) deployment, expansion, or access decisions; (2) budgets, compute, infrastructure, or risk

331 policy; (3) appointment, removal, direction, or supervision of persons exercising such authority;

332 or (4) ownership, voting, contractual, governance, or other rights conferring practical power to

333 prevent, halt, restrict, or correct a deployment or violation. Authority under this section may be

334 held or exercised directly or indirectly, individually or in concert with others, and through any

335 intermediary, entity, trust, or arrangement. The following, standing alone or in combination

336 only with each other, do not constitute authority under this section: title, office, seniority,

337 or status; professional credentials or technical ability; access to systems, weights, or

338 infrastructure; the ministerial execution, implementation, or communication of a decision made

339 by another; or the provision of advice, analysis, or recommendation to a person holding decision

340 authority. Authority under this section is the authority to decide, not the capacity to act.

341 (b) The following are presumed controlling persons in any civil proceeding, absent proof of
342 genuine absence of practical authority: (1) the chief executive officer of a developer or
343 provider, or of any entity that directly or indirectly controls a developer or provider; and (2)
344 any person holding ownership, voting, contractual, or governance rights sufficient, alone or in
345 concert with others, to direct or replace the management of a developer or provider, or of any
346 entity that directly or indirectly controls it. In any criminal proceeding, such status is
347 evidence from which the trier of fact may infer controlling-person status; the prosecution retains
348 its burden on every element under SEC. 6(d). Substance controls over title. Status is never a
349 substitute for authority.

350 (c) Non-delegable responsibility. Delegation does not relieve a controlling person who retains
351 material authority to prevent, halt, restrict, or correct a violation. No appointment of a safety
352 officer, compliance officer, committee, subsidiary, contractor, or other intermediary shields a
353 person who retains such authority. The designation of any person as responsible for compliance
354 neither diminishes nor creates any presumption against the responsibility of any other controlling
355 person. Liability is several as to each person independently meeting the elements of this Act.

356
357 [OPEN -- the largest question in this Act, and it is at this section]
358 SEC. 4(b)(2) presumes a controlling person is anyone holding rights sufficient to direct
359 or replace management. That presumption operates in CIVIL proceedings only. Where the
360 remedy is money the person holding the votes is presumed responsible; where the remedy is
361 prison, he is not, and he is best resourced to document that authority sat below him.
362 Three drafted parts would narrow it: a SEC. 0 finding supplying the rational connection;
363 Park's burden of production restored at SEC. 6(d); and an advance-designation record so
364 the org chart exists before anyone needs it. MISSING: a reading of County Court of Ulster
365 County v. Allen, 442 U.S. 140 (1979), which is not held, and then counsel.

366
367 [PROPOSED] Decision 3 - SEC. 4: the third-party evaluator - does practical authority still run to t
368 Level 5. Whether authority reaches a commissioning officer

369
370 SEC. 5. PROHIBITED ACTS. (a) Deployment of a covered system without validation required under
371 SEC. 3, after the applicable commencement under SEC. 3(c).

372 (b) Operating a covered system having autonomous external-access capabilities without the
373 authorization, privilege, monitoring, and enforcement controls prescribed under SEC. 3, where that
374 failure materially causes the system to obtain unauthorized access to any third-party system,
375 data, or model weights. Access procured by a third party's intentional misuse (including prompt
376 injection or stolen credentials) is a defense unless the prescribed controls against that class of
377 misuse were absent.

378 (c) Failure to report as required by SEC. 9.

379 (d) A false or misleading statement of material fact concerning a covered system, made to the
380 Agency, or to any agency or officer of this State in connection with the agency's or officer's
381 official functions.

382 (e) Failure to establish, maintain, or preserve any record required by SEC. 12 or by rule under
383 SEC. 3, or refusal to permit, upon the lawful demand of the Agency or the Attorney General or upon
384 order of a court of this State, access to or verification or copying of any such record. Nothing in t
385 abrogates any privilege recognized by the law of this State; a good-faith assertion of
386 privilege, made in the manner the law provides, is not a refusal under this paragraph.
387 Underlying facts remain subject to discovery and subpoena from any source, per SEC. 12.

388
389 [PROPOSED] Amendment 11 - SEC. 5: name the obligor; SEC. 9(b): write the duty in the active voice
390 Level 3. Two operations name two different actor classes
391 Would read:

392 A violation of this section is committed by each entity that deploys, releases, provides, or oper
393 6, by each controlling person of such an entity who meets the elements of that section.

394
395 [BLOCKED] Amendment 12 - SEC. 5(d): restore the scienter its own donor requires
396 Level 2. Alvarez not held
397 Would read:

398 (d) A statement of material fact concerning a covered system, made to the Agency or to any agency
399 A statement made after reasonable inquiry, on the basis of facts then known to the person making
400

401 SEC. 6. INDIVIDUAL LIABILITY. (a) Offense. A controlling person who had a duty concerning the
402 relevant risk or the practical power to detect, prevent, halt, restrict, or correct a violation of
403 SEC. 5, and who failed to exercise due care, commits an offense. Such a person stands in
404 responsible relation to the public danger within the meaning of *United States v. Dotterweich*, 320
405 U.S. 277, 281 (1943); the due-care element supplies the personal blameworthiness that custody
406 additionally requires. Due care under this Act is measured against the standards applicable under
407 SEC. 3 and the conduct of a reasonably prudent controlling person in like circumstances; an
408 entity's own framework is evidence of neither.

409 (b) Enhanced tier. (1) A person who knowingly or willfully causes, directs, conceals, or materially
410 facilitates a violation of SEC. 5, or who deliberately fails to halt a violation after notice, or
411 who knowingly makes a false certification under SEC. 8, is subject to the felony penalties of
412 SEC. 10(c). Where a violation described in this paragraph is a but-for and proximate cause of death or
413 serious injury to any person, the penalties of SEC. 10(c)(2) apply, and each person killed or
414 seriously injured constitutes a separate offense. Notice under this paragraph includes any report
415 or preliminary notice filed under SEC. 9 concerning the same class of risk.

416 (2) A person who commits any violation of SEC. 5 within [ten] years after a prior conviction of
417 that person under this Act has become final is subject to the felony penalties of SEC. 10(c)(1).
418 This paragraph operates upon the fact of the prior conviction, its finality, and the date of the
419 new violation, and upon nothing else; it neither requires nor permits inquiry into the conduct
420 underlying the prior conviction. The penalties of SEC. 10(c)(2) do not apply by reason of this
421 paragraph.

422 (c) Culpability floor. No custodial sentence may be imposed absent proof of at least the failure
423 of due care described in subsection (a). Entity liability under SEC. 10(a) is strict.

424 (d) The prosecution bears the burden of proving each element, including the person's practical
425 power, beyond a reasonable doubt. Genuine absence of power negates the element; it is not an
426 affirmative defense.

427 (e) Construction. A person has practical power if, by reason of position, ownership, or authority,
428 the person had the ability and opportunity, alone or with others, to detect, prevent, halt,
429 restrict, or correct the violation or the conditions giving rise to it. This section does not
430 require that the person could have acted alone or instantly, only that meaningful measures were
431 within the person's authority.

432

433 [PROPOSED] Amendment 8 - SEC. 6: the individual-liability offense, reconstructed
434 Level 4. The offense cannot be pleaded as drafted. Unvalidated
435 Would read:
436 A person commits an offense who, being a controlling person as to a covered system, (1) had, by reason
437 of, (2) failed to exercise due care in
438 5 occurred.
439 The prosecution need not prove that the person's failure was the sole or principal cause of the violation.
440

441 [PROPOSED] Amendment 22 - SEC. 6(b): the felony tier's knowledge element, and one word that is not
442 Level 1. Blocked on MacDonald & Watson n.15
443 Would read:
444 In proving that a person acted knowingly or willfully under this subsection, circumstantial evidence
445 Responsibility and authority under SEC.
446 6(d), standing alone, do not establish knowledge.
447

448 SEC. 7. PERSONAL ECONOMIC CONSEQUENCES.
449 (a) Disgorgement. On conviction or civil adjudication of a violation, the court shall order the
450 person adjudicated to disgorge the economic benefits attributable to the violation - including
451 salary, bonus, incentive- or equity-based compensation, distributions, profits realized on the
452 sale or transfer of any interest, and any increase in the value of any interest, whether received
453 directly or through any entity, trust, or arrangement - received or accrued during the period of
454 the violation and the [twelve] months following its cessation or concealment. Incentive- or

equity-based compensation received by a controlling person during the period of a violation is presumed attributable to the violation to the extent the violation materially contributed to the results on which it was paid; the presumption is rebuttable in a civil proceeding and operates in a criminal proceeding only as a permissive inference. The court may reduce or decline recovery only upon a finding that the direct costs of recovery would exceed the amount recoverable. Amounts disgorged shall be applied first to restitution ordered under SEC. 10(c)(4), and the remainder deposited in the fund established by SEC. 10(f). A claim under this subsection is subject to the limitations periods of SEC. 12. On a showing of probable adjudication and risk of dissipation, the court may restrain transfers of, or require the escrow of, assets up to the amount reasonably necessary to satisfy the anticipated order.

(b) No indemnification or insurance. (1) No person may (A) enter into, renew, or materially amend a contract of insurance or other arrangement under which any person is covered, in whole or in part, against liability for an individual penalty, fine, or disgorgement imposed under this Act; (B) provide, underwrite, or pay a benefit under such a contract or arrangement, or pay or reimburse, directly or indirectly, any part of such a liability imposed on another person; or (C) demand, accept, or retain such a benefit, payment, or reimbursement. (2) No person may make, offer, solicit, or receive any payment, loan, forgiveness of indebtedness, increase in compensation, gross-up, distribution, gift, or other transfer of value whose purpose or predominant effect is to offset, in whole or in part, a liability described in paragraph (1). (3) Every contract, arrangement, or transfer described in this subsection is void and unenforceable in this State, whatever law is chosen to govern it, to the full extent of this State's jurisdiction; and any benefit received under one is held in constructive trust for the persons and fund to which subsection (a) applies. (4) A violation of this subsection is a violation of this Act for purposes of SEC. 10(a); a knowing violation by a controlling person is a violation of SEC. 5 for purposes of SEC. 6(b)(1). (5) This subsection does not restrict the purchase or provision of insurance for, or the payment, advancement, or indemnification of, reasonable costs of defense, provided that amounts advanced or indemnified shall be repaid by a person finally adjudicated to have committed a knowing or willful violation under SEC. 6(b), to the extent attributable to the defense of that violation; and it does not restrict indemnification of a person not adjudicated liable under this Act. (6) Application. Paragraph (1) applies to contracts and arrangements entered into, renewed, or materially amended on or after the effective date of this Act. A contract or arrangement in force on the effective date may be maintained until its first renewal, expiration, or material amendment, and in any event no longer than [twelve] months after the effective date, after which maintaining it is a violation of paragraph (1). (7) Restitution preserved. This subsection does not restrict the purchase or provision of insurance for, or the payment, advancement, or indemnification of, restitution ordered under SEC. 10(c)(4); amounts paid under any such arrangement shall be applied to restitution before any other liability, and no such payment extinguishes any other liability of any person.

(c) Construction. Disgorgement under subsection (a) is remedial, is additional to any penalty or fine, and shall not be credited against one; no single benefit shall be disgorged more than once. Nothing in this section limits any remedy under SEC. 10.

SEC. 8. CERTIFICATION. Before material deployment and following material change to a covered model or configuration, the chief executive officer (or, where no such office exists, each natural person exercising the most senior executive authority over the entity, severally), and each controlling person designated by rule, shall personally certify compliance with noncompliance, on the structure of 18 U.S.C. § 1350. For purposes of this section: "material deployment" means the first deployment of an identified model version in or into this State, and any deployment following a material expansion or a material change; "material change" means a change granting a new class of tools, credentials, or permissions, materially expanding capability or autonomy, or removing or materially weakening a safeguard identified in an applicable validation. The Agency may elaborate these definitions prospectively by rule and may not narrow them. Changes to a covered model or configuration below the material line shall be certified in a periodic certification covering every such change in the period, filed not less often than once in each [calendar quarter] in which any such change occurred; a periodic certification is a certification under this section, with the consequences this section and SEC. 6 attach. The chief executive officer's obligation may

512 not be delegated or performed through any designee. The Agency may by rule designate the
513 certifying office or offices for forms of organization lacking a chief executive officer; no
514 designation diminishes the several obligation stated in this section, and no entity may, by its
515 form of organization, leave this section without an obligated natural person. The certification consists
516 fact within the certifying person's knowledge after reasonable inquiry. No person is required by
517 this section to characterize, opine upon, or adopt any position concerning the capabilities,
518 risks, or merits of any model or system. A certification disclosing identified noncompliance satisfies
519 the duty to certify under this section; it constitutes neither compliance with the applicable
520 standards, nor validation, nor cure of, nor a defense to, any violation of this Act, and a
521 certification disclosing unremediated material nonconformity - nonconformity not addressed by an
522 equivalent compensating measure within the meaning of SEC. 3(c)(2) - shall so state on its face. A certifying
523 Knowing false certification is an offense under SEC. 6(b)(1); reckless certification without
524 reasonable inquiry is an offense under SEC. 6(a).

525
526 [PROPOSED] Amendment 5 - SEC. 8 punctuation
527 Level 3. Mechanical. A comma where a period belongs
528

529 [PROPOSED] Amendment 21 - SEC. 8: the certification register, facts public, content protected
530 Level 4. Trade secret and public records
531

532 [PROPOSED] Amendment 24 - SEC. 8: the certification's lower tier names a mental state SEC. 6(a) does not require
533 Level 4. SEC. 8 names a mental state SEC. 6(a) does not require
534 Would read:

535 Knowing false certification is an offense under SEC.
536 6(b)(1); certification without reasonable inquiry is an offense under SEC.
537 6(a), which requires proof of the failure of due care described in that subsection.
538

539 SEC. 9. INCIDENT REPORTING. (a) "Critical safety incident": exfiltration or loss of control of
540 model weights; loss of operator control of a covered system; autonomous access by a covered system
541 to protected third-party systems; death or serious injury materially caused by a covered system;
542 deception of safety or monitoring controls by a covered system; a serious near-miss, meaning an
543 event that, but for intervention other than controls
544 operating as designed, or but for chance, would have constituted an incident under this
545 subsection; or a reproducible evaluation finding of materially increased risk. Behavior
546 intentionally elicited in a sandboxed exercise and contained there is not an incident but shall be
547 recorded. An event detected and contained by controls operating as designed, before any effect
548 outside the systems of the entity whose controls contained it, is not an incident under this
549 subsection but shall be recorded under SEC. 12.

550 (b) Preliminary notice to the Agency within 72 hours of credible notice to the entity or any
551 controlling person (24 hours where there is imminent risk of death or serious injury); full report
552 within [30] days of the preliminary notice, the incompleteness of an investigation not extending
553 the period; material updates within [10] days of awareness thereafter. The period runs from when
554 the incident was detected, or would have been detected by the monitoring the entity certified it
555 maintains under SEC. 8.

556 (c) A report under this section may consist of the facts known to the reporting person at the time
557 of the report. No person is required to characterize an event, to state a conclusion as to
558 causation or risk, or to adopt any contested description; the obligation is discharged by a timely
559 statement of the facts then known, supplemented as required by subsection (b). A report is made to
560 the Agency and is not required to be published.
561

562 [PROPOSED] Amendment 4 - SEC. 9(a): the two characterization-shaped triggers, recast as observable events
563 Level 4. Are the recast events provable?
564 Would read:

565 a divergence, reproducible on the entity's own records, between a covered system's behavior under
566 No finding as to any intent, awareness, purpose, or mental state of a covered system is required,
567

568 [PROPOSED] Amendment 14 - SEC. 9(b): a detection clock that cannot be gamed by certifying less monitoring

569 Level 3. Sound as drafted on five attacks
570 Would read:
571 The period runs from the earliest of: (i) actual detection of the incident by the entity or any c
572 3, whether or not the entity maintained it.
573 An entity's failure to maintain monitoring required by the applicable standards does not extend a
574

575 SEC. 10. ENFORCEMENT AND PENALTIES. (a) Entity: civil penalty of up to \$[1,000,000] per violation
576 for each day the violation continues or, where the violation occurs after a prior adjudication of
577 a violation by the same person has become final, up to \$[3,000,000] per violation for each day the
578 violation continues; strict liability. In assessing the amount, the court shall consider the
579 seriousness of the violation; the economic benefit or savings resulting from it; any history of
580 violations; good-faith efforts to comply; the economic impact of the penalty on the violator; and
581 such other matters as justice may require, per the structure of 33 U.S.C. § 1319(d). A penalty
582 under this subsection shall not be less than the economic benefit or savings derived from the
583 violation, as found by the court. Penalty amounts under this Act shall be adjusted annually for
584 inflation by Agency rule, in the manner of 40 C.F.R. part 19.

585 (b) Individual offense under SEC. 6(a): [misdemeanor; imprisonment up to one year; fine up to
586 \$[100,000] or, if greater, twice the gross pecuniary gain to the person derived from the
587 violation], per the structure of 21 U.S.C. § 333(a)(1) as to classification and of 18 U.S.C.
588 § 3571(b)(5) and (d) as to amount.

589 (c)(1) Enhanced tier under SEC. 6(b): [felony; imprisonment up to three years; fine up to
590 \$[250,000] or, if greater, twice the gross pecuniary gain to the person derived from the
591 violation].

592 (c)(2) Enhanced tier under SEC. 6(b)(1) where death or serious injury results: [felony]. (A) Where
593 serious injury results, imprisonment up to twenty years for each offense. (B) Where death results,
594 imprisonment for any term of years or for life for each offense, and not less than [two] years.
595 (C) In either case, a fine up to \$[1,000,000] for each offense or, if greater, twice the gross
596 pecuniary gain to the person derived from the violation. (D) "Results" requires that the violation be
597 both a but-for cause, within the meaning given in *Burrage v. United States*, 571 U.S. 204 (2014),
598 and a proximate cause of the death or serious injury: the death or serious injury must have been
599 a reasonably foreseeable consequence of the violation and not the product of an independent,
600 unforeseeable intervening cause. That death or serious injury so resulted, and
601 the identity of each person killed or seriously injured, are elements of each such offense, to be
602 charged and found by the trier of fact beyond a reasonable doubt.

603 (c)(3) Concurrent and consecutive service. Terms of imprisonment imposed under this Act at the
604 same time run concurrently unless the court orders consecutive service. The court may order
605 consecutive service only upon findings, stated on the record, that consecutive service is
606 necessary to reflect the seriousness of each offense, the culpability found under SEC. 6, and the
607 totality of the harm, and that the aggregate term is not disproportionate to the whole of the
608 person's conduct and culpability. The aggregate of the determinate terms ordered to run
609 consecutively for offenses under this Act arising out of the same violation or course of conduct
610 shall not exceed [forty] years. Nothing in this paragraph limits the imposition of a term of
611 imprisonment for life where death results. A minimum term under this subsection attaches to each
612 offense severally and is satisfied by concurrent service.

613 (c)(4) Restitution. Whenever death or serious injury results from an offense under this Act,
614 whatever its tier, the court shall order restitution to each person killed or seriously injured,
615 or to the person's estate, per the structure of 18 U.S.C. § 3663A; "results" bears the same
616 meaning as in paragraph (2). Restitution has priority over every penalty, fine, and disgorgement
617 in the application of a defendant's assets. In fixing a fine for a natural person under this Act,
618 the court shall consider the person's income, earning capacity, and financial resources, so that
619 like culpability bears like burden.

620 (d) Remedies additionally include: (1) injunction against any entity or controlling person
621 restraining deployment, expansion, or continued operation in violation of this Act, per the
622 structure of 21 U.S.C. § 332; (2) suspension of an identified model version and configuration, per
623 the structure of 21 U.S.C. § 334; operation of a suspended configuration in this State by any
624 person with notice of the suspension is contempt and a violation of SEC. 5(a); (3) on probable
625 cause of imminent risk of death or serious injury, emergency suspension ex parte, with a

626 post-deprivation hearing within [10] days; (4) disqualification from acting as a controlling
627 person of any covered system; and (5) suspension and debarment modelled on FAR subpart 9.4.
628 (e) The Attorney General enforces this Act. Corporate payment of any penalty imposed on a natural
629 person does not extinguish individual liability and is a violation of SEC. 7(b).
630 (f) Fund. The [Frontier AI Accountability Fund] is established. All penalties, fines,
631 disgorgement, and other monetary recoveries under this Act, after satisfaction of restitution,
632 shall be deposited in the fund; awards under SEC. 11 are paid from it; the balance [is
633 appropriated to the Agency's functions under this Act / reverts to the general fund, at the
634 adopting state's election]. The fund continues in operation, fed by every source not suspended or
635 invalidated, notwithstanding the suspension or invalidity of any single provision of this section.

636
637 [PROPOSED] Amendment 9 - SEC. 10(e): the access authority the Act forgot to import
638 Level 4. § 374 does not supply the model
639 Would read:

640 (e) Access and demand.

641 The Agency and the Attorney General may, upon reasonable notice and during ordinary business hours
642 12 or by rule under SEC.

643 3, and may require a written response, under oath, to interrogatories reasonably related to the ex.

644 A demand shall be in writing, shall identify the records sought with reasonable particularity, and

645 On petition of the person served, [the court of general jurisdiction of the county in which the Agency

646 A demand under this subsection.

647

648 [PROPOSED] Amendment 25 - SEC. 10(d): the FDCA remedies are cited and their protections are not taken
649 Level 4. Is taking the FDCA protections coherent?

650 Would read:

651 In any proceeding for contempt of an order under this subsection where the conduct also constitutes

652 5, trial shall be by the court or, upon demand of the accused, by a jury.

653

654 SEC. 11. WHISTLEBLOWERS. (a) Award. A person who voluntarily provides the Agency with original
655 information leading to a successful enforcement action under this Act in which monetary sanctions
656 exceed \$[1,000,000] shall receive not less than 10 and not more than 30 percent of the sanctions
657 collected, per the structure of 15 U.S.C. § 78u-6. Awards are paid from the fund established by
658 SEC. 10(f). Awards remain payable from the fund whatever the source of the amounts in it; the
659 suspension or invalidity of SEC. 10(a) does not suspend this section. (b) A report may be made
660 anonymously through counsel; the Agency shall protect the reporting person's identity, including
661 in any award. (c) No person may take any action to impede an individual from communicating with
662 the Agency concerning a possible violation of this Act; any agreement or condition purporting to
663 do so is void. (d) Retaliation against a person for reporting, internally or to the Agency, gives
664 rise to a civil action for reinstatement, double back pay, and fees. (e) The Agency shall act
665 upon, or publish a reasoned declination of, any credible report within [180] days. (f) Rules under
666 SEC. 3 shall provide for the handling of security-sensitive information in reports and awards.

667

668 [OPEN] Amendment 17 -- Never drafted - number and title only

669

670 SEC. 12. MACHINERY. This Act takes effect [90] days after enactment; until the Agency is
671 designated and organized to receive them, transmission to the Attorney General satisfies any
672 requirement under this Act of transmission to the Agency, and the Attorney General shall
673 transfer the materials to the Agency upon its organization; duties and offenses commence
674 as provided by SEC. 3(c); [180-day] transition for covered systems deployed before the
675 commencement applicable to them under SEC. 3(c), running from that commencement; no retroactive
676 liability; records sufficient for audit (version identifiers, compute records, evaluation results,
677 tool and permission manifests, change histories, and the compensation records upon which SEC. 7(a)
678 operates) retained for [ten] years from creation, or for [five] years after the covered system
679 last operates in or is last deployed in or into this State, whichever period ends later; and, from
680 the time the entity or any controlling person has notice of a critical safety incident, of an
681 investigation, or of a proceeding under this Act to which the records are reasonably relevant, the
682 records shall be preserved until the conclusion thereof; confidentiality of reported material as

683 follows: reports under SEC. 9, certifications under SEC. 8, and validation materials under SEC. 3
684 are exempt from disclosure under [the State public-records act], and to the extent they contain
685 security-sensitive information - including information that would materially assist unauthorized
686 access to model weights or covered systems - shall be maintained under seal in any proceeding;
687 this exemption does not limit access by the Agency, the Attorney General, or a court under seal,
688 does not exempt any person from any obligation to disclose under any other law, does not create
689 any privilege for underlying facts, which remain subject to discovery and subpoena from any
690 source, and does not restrict any use of any material in an enforcement proceeding under this Act.
691 Dissolution, merger, conversion, division, or reorganization of an entity does not abate any
692 proceeding or extinguish any liability under this Act; a surviving, resulting, or successor
693 entity, and any entity that acquires substantially all of a covered entity's assets and continues
694 its business, assumes the predecessor's liabilities under this Act; nothing in this section
695 transfers the criminal liability of any natural person to any other person. A prosecution under
696 this Act shall be commenced within [five] years after the violation; for a continuing violation,
697 within [five] years after its last day; where the violation was concealed by an affirmative act,
698 within [five] years after its discovery by the Agency or the Attorney General; a prosecution for
699 an offense to which SEC. 10(c)(2) applies may be commenced within [ten] years. This Act shall be
700 construed to reach the persons with the greatest practical authority over covered systems; it
701 shall not be construed to permit the discharge of any person's liability through the liability of
702 another. Nothing in this Act displaces any other remedy of this State.

703

704 SEC. 13. SEVERABILITY, CONFORMING OPERATION, AND REVIVAL.

705 (a) Severability. The provisions of this Act are severable. If any provision, or any application
706 of any provision to any person, capacity, class of persons, or circumstance, is held invalid or
707 unenforceable, the holding does not affect any other provision or application that can be given
708 effect without it, and this Act shall be construed and enforced to the maximum extent it may
709 lawfully operate.

710 (b) Order of severance. Where a court can preserve the operation of this Act by severing a
711 narrower provision or application rather than a broader one, it shall do so, and shall sever
712 later-listed matter before earlier-listed matter:

713 (1) First rank. The offenses under SEC. 5(b) and SEC. 5(d); the offense under SEC. 5(a) as applied
714 to the deployment (otherwise than by release), material expansion, or continued operation of a
715 covered system in or into this State; SEC. 4 and SEC. 6; the remedies and penalties of SEC. 7 and
716 SEC. 10(b) through (f) as applied to those offenses, and SEC. 10(a) as applied to those offenses;
717 the duties of SEC. 2 as applied to a person in that person's capacity as a provider or deployer;
718 and SEC. 1, SEC. 3(a), SEC. 3(c), and the provisions of SEC. 12 governing limitations, transition,
719 retroactivity, and successor liability.

720 (2) Second rank. SEC. 11; the remaining provisions of SEC. 12; the offense under SEC. 5(e), except
721 as provided in paragraph (3).

722 (3) Third rank. The duties of SEC. 2 and SEC. 3 as applied to a person in that person's capacity
723 as a developer, including pre-release evaluation and weight security; SEC. 5(a) as applied to a
724 release; SEC. 5(e) as applied to records of pre-release evaluation held by a person in that
725 person's capacity as a developer; the validation modes of SEC. 3(b) requiring assessment by a
726 person other than the developer.

727 (4) Fourth rank. SEC. 8; SEC. 9; SEC. 5(c).

728 (5) Preservation of elements. No provision shall be severed to an extent that deprives a surviving
729 offense of an element, a definition, a standard, a limitations period, or a commencement condition
730 on which that offense depends. A provision of a later rank that supplies such matter to an offense
731 of an earlier rank continues in effect for that purpose notwithstanding its severance for every
732 other purpose. In particular, SEC. 3(a) and SEC. 3(c) continue in effect to supply the content of,
733 and the commencement condition for, any surviving offense under SEC. 5. The civil penalty of
734 SEC. 10(a) and the criminal penalties of SEC. 10(b) and (c) sever independently of one another;
735 the invalidity or suspension of either, in whole or as applied, does not affect the other; and the
736 fund under SEC. 10(f) continues in operation whatever else is severed, fed by the sources that
737 remain. The offense under SEC. 5(e) and the duties of SEC. 12 sever independently of one another:
738 severance or suspension of the offense leaves the duties enforceable under SEC. 10(a), and
739 severance of any reporting or certification duty does not sever the records duties or the offense

740 that enforces them.

741 (6) Declared intent. The Legislature declares that it would have enacted the provisions of each
742 rank irrespective of the invalidity of any later rank, and specifically that it would have enacted
743 the first rank, together with the matter preserved to it by paragraph (5), had it known that no
744 later rank could take effect.

745 (c) Conforming operation. (1) The Attorney General shall, by order published in [the State
746 register], determine whether and to what extent any Act of Congress, or any regulation having the
747 force of law, preempts the application of any provision of this Act. Upon publication, the
748 provision is suspended to the extent, and only to the extent, stated in the order. A provision is
749 suspended under this subsection only by such an order, or by a final judgment no longer subject to
750 appeal in a proceeding to which this State was a party; and a suspension applies only to conduct
751 occurring after the date of publication of the order or of notice of the judgment.

752 (2) In making a determination under paragraph (1), the Attorney General shall preserve the
753 operation of this Act to the greatest extent lawfully available, and shall have regard to the
754 following, which are stated as directions to the Attorney General and not as conditions of any
755 person's liability:

756 (A) where the federal enactment conditions the preservation of State authority upon the absence of
757 obligations imposed on developers with respect to the development, training, evaluation, or
758 release of a model, the order shall suspend the duties of this Act as applied to persons in the
759 capacity of a developer with respect to those matters, and shall preserve them as to every other
760 person, capacity, and matter;

761 (B) where the federal enactment reaches only laws regulating conduct prior to deployment, the
762 order shall preserve this Act as applied to conduct occurring upon or after deployment;

763 (C) where the federal enactment reaches a duty to report or to certify to the Agency, the order
764 shall preserve the obligation, under SEC. 12, to create and retain the records that would have
765 supported the report or certification, and those records shall be produced upon lawful process; an
766 order preserving the obligation preserves the offense under SEC. 5(e) with respect to it; and

767 (D) where the federal enactment reaches only laws that target developers of artificial
768 intelligence models, the order shall so state, and nothing in this Act limits the application to
769 any person of the generally applicable criminal law of this State, including the law of homicide,
770 reckless endangerment, endangerment by unsafe or adulterated goods, and false statement to a
771 public officer, which applies to conduct concerning covered systems as it applies to all other
772 conduct.

773 (3) No person may be convicted of an offense under this Act for conduct occurring during a period
774 in which the provision creating the offense stood suspended under this subsection.

775 (d) Revival. A provision suspended under subsection (c) is not repealed. The Attorney General
776 shall, within [30] days after the expiration, sunset, non-reauthorization, repeal, or judicial
777 invalidation of the federal enactment stated in the order, or after a final judgment no longer
778 subject to appeal determining that the enactment does not preempt the provision, publish an order
779 terminating the suspension. The provision resumes operation on the date of publication of that
780 order and applies to conduct occurring on or after that date. No person is liable under a
781 provision for conduct occurring before that date.

782 (e) No inference. A suspension under subsection (c) is not evidence that the suspended provision
783 was invalid, and does not affect liability for conduct occurring before the suspension took
784 effect.

785

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788

789 [PROPOSED] Amendment 2 - SEC. 13(c): a review valve on the suspension order
790 Level 4. Administrative law
791 Would read:

792 (4) Contents and review.

793 An order under this subsection shall identify the federal enactment relied upon, the provisions of

794 Any person may petition [the court of general jurisdiction of the county in which the Agency sits].

795 An order vacated or narrowed on review ceases to operate, to the extent vacated or narrowed, from

796